

Unifund CCR, LLC v. Shawna Sylvester, 20LC-0004

Hearing: Claim of Exemption

Date: September 23, 2026

TENTATIVE RULING

This claim of exemption was originally set for hearing on July 22, 2026. At that time, the Sheriff's Memorandum had not yet been filed providing the claim of exemption. The Court continued the matter and directed the judgment creditor to file the missing paperwork and the judgment debtor's financial statement. Counsel, however, did not appear at the hearing.

At the hearing on August 19, 2026, the Court again noted it did not have the judgment debtor's financial statement and directed the judgment creditor to submit the missing documentation. Counsel was not present at the hearing, so the courtroom clerk gave notice of the continuance.

"After receiving the notice of the hearing and before the date set for the hearing, the levying officer shall file the claim of exemption and the notice of opposition to the claim of exemption with the court." (Code Civ. Proc., § 706.105(e).) The San Luis Obispo County Sheriff's Office submitted its memorandum in July, but the memorandum did not include the financial statement.

PRACTICE POINTER: The judgment creditor should also file with the court copies of the debtor's claim of exemption and financial statement. (The debtor is only required to file these papers with the levying officer; thus, the court will not be able to review them unless they are filed by the judgment creditor.)

(Ahart, Cal. Practice Guide: Enforcing Judgments and Debts (The Rutter Group 2026) ¶ 11:262.)

The judgment creditor's opposition states it "believes that defendant's financial statement is not reasonable." Such a statement indicates the judgment debtor did submit a financial statement. This is the third hearing where the financial statement has not been submitted despite the Court's direction to the judgment creditor to file it with the Court.

The Court grants the claim of exemption in full. The Clerk will transmit a certified copy of the order to the levying officer. (Code Civ. Proc., § 706.105(g).)